

Omana Jose vs State of Kerala on 23 September, 2013

Author: M.L.Joseph Francis

Bench: K.T.Sankaran, M.L.Joseph Francis

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE K.T.SANKARAN
&
THE HONOURABLE MR.JUSTICE M.L.JOSEPH FRANCIS

FRIDAY, THE 11TH DAY OF APRIL 2014/21ST CHAITHRA, 1936

CrI.Rev.Pet.No. 2334 of 2013 (B)

AGAINST THE JUDGMENT IN CRA 728/2012 OF THE ADDITIONAL SESSIONS
JUDGE - VII, ERNAKULAM DATED 23.9.2013

AGAINST THE JUDGMENT IN CC 1399/2010 OF THE COURT OF THE ADDITIONAL
CHIEF JUDICIAL MAGISTRATE (EO), ERNAKULAM DATED 27.9.2012

REVISION PETITIONER/APPELLANT/COMPLAINANT:

OMANA JOSE, W/O.JOSE,
KOCHAPPILLY HOUSE, CHILAVANNUR
COCHIN, PIN - 682 030.

BY ADVS.SRI.ABRAHAM VAKKANAL (SR.)
SRI.PAUL ABRAHAM VAKKANAL
SRI.PRASUN.S
SRI.DIJO SEBASTIAN
SMT.VINEETHA SUSAN THOMAS

RESPONDENTS/STATE AND ACCUSED:

1. STATE OF KERALA
REPRESENTED BY PUBLIC PROSECUTOR

HIGH COURT OF KERALA, ERNAKULAM, PIN - 682 031.

2. P.N.RADHAKRISHNAN,, AGED ABOUT 55 YEARS
PARAPPURATH HOUSE, KOTTEKANAL ROAD
BEHIND LISSY HOSPITAL, COCHIN - 18.

3. M/S PARAPPURATH CHITTIES (P) LTD.,
LAKSHMI BUILDING, PADMA JUNCTION,
M.G.ROAD, COCHIN - 35
REPRESENTED BY MANAGING DIRECTOR P.N.RADHAKRISHNAN.

R2 & 3 BY ADV. SRI.T.N.HAREENDRAN
R1 BY PUBLIC PROSECUTOR SRI.K.K.RAJEEV

THIS CRIMINAL REVISION PETITION HAVING BEEN FINALLY HEARD ON
10/1/2014, ALONG WITH CRL.R.P.NO.2338 OF 2013, THE COURT ON 11-04-2014,
PASSED THE FOLLOWING:

K.T.SANKARAN &
M.L.JOSEPH FRANCIS, JJ.

CRL.R.P.NOS.2334 & 2338 OF 2013

Dated this the 11th day of April, 2014

O R D E R

K.T.Sankaran, J.

These Criminal Revision Petitions were referred to the Division Bench in the light of conflicting decisions of this Court in Sree Gokulam Chit and Finance Co. (P) Ltd., Kasaragod v. Damodaran N. and another : 2013 (4) KHC 395 = 2013 (2) KLT SN 99 Case No.126 = 2013(3) KLJ 3 and Shibu Joseph and others v. Tomy K.J. and others : 2013 (4) KHC 629 = ILR 2013(4) Ker. 866 = 2013(2) KLD 938, on the question whether an appeal would lie to the Sessions Court under the proviso to Section 372 of the Code of Criminal Procedure against acquittal of the accused in a case under Section 138 of the Negotiable Instruments Act. In Sree Gokulam Chit's case, a learned single Judge of this Court held that an appeal would not lie before the Sessions Court and it would lie only before the High Court under Section 378(4) of the Code of Criminal Procedure. In Shibu Joseph's case, another learned single Judge CRL.R.P.NOS.2334 & 2338 OF 2013 :: 2 ::

held that the complainant in a complaint under Section 138 of the Negotiable Instruments Act, being a victim as defined in Section 2 (wa) of the Code of Criminal Procedure, is entitled to file an appeal before the Sessions Court under the proviso to Section 372 of the Code of Criminal Procedure challenging an order of acquittal. In Shibu Joseph's case, the learned single Judge referred to the decision in Sree Gokulam Chit's case. However, that decision was not followed on the ground that "the various provisions regarding the rights conferred on the victim were not

considered" in Sree Gokulam Chit's case.

2. When these Criminal Revision Petitions came up before the learned single Judge who decided Sree Gokulam Chit's case, the Revisions were referred to the Division Bench as per the order dated 9.12.2013.

3. In the present Criminal Revision Petitions, the complaint cases under Section 138 of the Negotiable Instruments Act were disposed of by the Additional Chief Judicial Magistrate (Economic Offences), Ernakulam and the accused were acquitted. On appeal by CRL.R.P.NOS.2334 & 2338 OF 2013 :: 3 ::

the complainants before the Sessions Court, the acquittal was confirmed. The complainants in the cases have filed the Criminal Revision Petitions.

4. The contention that an appeal would lie against an order of acquittal in a case under Section 138 of the Negotiable Instruments Act is taken on the basis of the insertion of the definition of 'victim' in Section 2(wa) and insertion of the proviso to Section 372 of the Code of Criminal Procedure, both by the Code of Criminal Procedure Amendment Act 2008 (Act 5 of 2009). The expression 'victim' is defined in Section 2(wa) of the Code of Criminal Procedure, as follows:

"2. Definitions.-- In this Code, unless the context otherwise requires,--

.....
.....

(wa) "victim" means a person who has suffered any loss or injury caused by reason of the act or omission for which the accused person has been charged and the expression "victim" includes his or her guardian or legal heir;"

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5. Section 372 of the Code of Criminal Procedure provides that no appeal shall lie from any judgment or order of a Criminal Court except as provided for by the Code or by any other law for the time being in force. The proviso was inserted by Act 5 of 2009, which reads as follows:

"Provided that the victim shall have a right to prefer an appeal against any order passed by the Court acquitting the accused or convicting for a lesser offence or imposing inadequate compensation, and such appeal shall lie to the Court to which an appeal ordinarily lies against the order of conviction of such Court."

6. Section 378 of the Code of Criminal Procedure was amended by the Code of Criminal Procedure (Amendment) Act, 2005 (Act 25 of 2005).

7. Section 378 of the Code of Criminal Procedure before its amendment by Act 25 of 2005 and after the amendment by Act 25 of 2005 read as follows:

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"(Before amendment) S.378. Appeal in case of acquittal.-- (1) Save as otherwise provided in sub-section (2) and subject to the provisions of sub-sections (3) and (5), the State Government may, in any case, direct the Public Prosecutor to present an appeal to the High Court from an original or appellate order of acquittal passed by any Court other than a High Court or an order of acquittal passed by the Court of Session in revision.

(2) If such an order of acquittal is passed in any case in which the offence has been investigated by the Delhi Special Police Establishment constituted under the Delhi Special Police Establishment Act, 1946 (25 of 1946) or by any other agency empowered to make investigation into an offence under any Central Act other than this Code, the Central Government may also direct the Public Prosecutor to present an appeal, subject to the provisions of sub-section (3), to the High Court from the order of acquittal.

(3) No appeal under sub-section (1) or sub-section (2) shall be entertained except with the leave of the High Court.

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(4) If such an order of acquittal is passed in any case instituted upon complaint and the High Court, on an application made to it by the complainant in this behalf, grants special leave to appeal from the order of acquittal, the complainant may present such an appeal to the High Court.

(5) No application under sub-section (4) for the grant of special leave to appeal from an order of acquittal shall be entertained by the High Court after the expiry of six months, where the complainant is a public servant, and sixty days in every other case, computed from the date of that order of acquittal. (6) If, in any case, the application under sub-

section (4) for the grant of special leave to appeal from an order of acquittal is refused, no appeal from that order of acquittal shall lie under sub-section (1) or under sub-section (2)."

"(After amendment) S.378. Appeal in case of acquittal.-- (1) Save as otherwise provided in sub-section (2), and subject to the provisions of sub-sections (3) and (5),--

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(a) the District Magistrate may, in any case, direct the Public Prosecutor to present an appeal to the Court of Session from an order of acquittal passed by a Magistrate in respect of a cognizable and non-bailable offence;

(b) the State Government may, in any case, direct the Public Prosecutor to present an appeal to the High Court from an original or appellate order of an acquittal passed by any Court other than a High Court not being an order under clause

(a) or an order of acquittal passed by the Court of Session in revision.

(2) If such an order of acquittal is passed in any case in which the offence has been investigated by the Delhi Special Police Establishment constituted under the Delhi Special Police Establishment Act, 1946 (25 of 1946) or by any other agency empowered to make investigation into an offence under any Central Act other than this Code, the Central Government may, subject to the provisions of sub-section (3), also direct the Public Prosecutor to present an appeal--

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(a) to the Court of Session, from an order of acquittal passed by a Magistrate in respect of a cognizable and non-bailable offence;

(b) to the High Court from an original or appellate order of an acquittal passed by any Court other than a High Court not being an order under clause (a) or an order of acquittal passed by the Court of Session in revision.

(3) No appeal to the High Court under sub-section (1) or sub-section (2) shall be entertained except with the leave of the High Court.

(4) If such an order of acquittal is passed in any case instituted upon complaint and the High Court, on an application made to it by the complainant in this behalf, grants special leave to appeal from the order of acquittal, the complainant may present such an appeal to the High Court.

(5) No application under sub-section (4) for the grant of special leave to appeal from an order of acquittal shall be entertained by the High Court after the expiry of six months, where the complainant is a CRL.R.P.NOS.2334 & 2338 OF 2013 :: 9 ::

public servant, and sixty days in every other case, computed from the date of that order of acquittal. (6) If, in any case, the application under sub-

section (4) for the grant of special leave to appeal from an order of acquittal is refused, no appeal from that order of acquittal shall lie under sub-section (1) or under sub-section (2)."

8. The changes made by the amendment in Section 378, by Act 25 of 2005, are the following:

a) An appeal against acquittal would lie to the Court of Session in respect of cognizable and non-bailable offences cases which were instituted on police report. Before the amendment, appeal could be presented only to the High Court in such cases.

b) In respect of cases not covered by clause (a) of sub-section (1) of Section 378, appeal against acquittal lies before High Court, even after the amendment.

c) Similar changes have been brought out by Act 25 of 2005 in sub-section (2) of Section 378 also.

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d) Section 378, before its amendment by Act 25 of 2005, provided for an appeal against an order of acquittal passed by a Court of Session in Revision. That appellate power is now in clause (b) of sub-section (1) of Section 378, as substituted by Amendment Act 25 of 2005.

e) After the amendment of sub-section (3) of Section 378, an appeal to the High Court under sub-section (1) or sub-section (2) of Section 378 shall not be entertained except with the leave of the High Court. But such leave is not required in the case of an appeal filed before a Court of Session under clause

(a) of sub-section (1) or clause (a) of sub-section (2).

f) Sub-sections (4), (5) and (6) remain the same even after Act 25 of 2005. In other words, no change was made to those sub-

sections.

9. The Code of Criminal Procedure was further amended by Code of Criminal Procedure Amendment Act 2008 (Act 5 of 2009) which came into force on 31.12.2009. The relevant provisions of the Amendment Act 5 of 2009 for the purpose of deciding the question CRL.R.P.NOS.2334 & 2338 OF 2013 :: 11 ::

involved in these cases are: (1) Introduction of the definition of 'victim' under Section 2(wa); (2) Insertion of the proviso to Section 372; and (3) Insertion of Section 357A; and (4) Insertion of proviso to sub-section (8) of Section 24.

10. Before the amendments referred to above, a complainant in a case instituted on complaint could challenge the order of acquittal in an appeal before the High Court under Section 378(4). Such appeal would be maintainable only if the High Court grants special leave to appeal. A victim in a

case instituted on police report could challenge the order of acquittal only by filing a revision under Section 397 of the Code of Criminal Procedure. Before the amendment of Section 378 by the Amendment Act 25 of 2005, in a case instituted on police report, the State Government could direct the Public Prosecutor to present an appeal to the High Court from an original or appellate order of acquittal passed by any Court other than High Court or an order of acquittal passed by the Court of Session in revision. Sub-section (1) of Section 378 as substituted by Act 25 of 2005 categorises the cases into two, as shown in clauses (a) and (b). In cognizable and non-bailable offences, an appeal against acquittal CRL.R.P.NOS.2334 & 2338 OF 2013 :: 12 ::

would lie before the Court of Session under clause (a) of sub-section (1) of Section 378 as substituted by Act 25 of 2005.

11. Even after the Amendment Act 5 of 2009, sub-section (4) of Section 378 is kept intact. It cannot be assumed that the parliament was unaware of the existence of sub-section (4) of Section 378, when it thought of introducing the proviso to Section 372 and providing a definition for 'victim'.

12. In Shibu Joseph and others v. Tomy K.J. and others :

2013 (4) KHC 629, the learned single Judge mentioned the two views that would be possible in considering the question whether an appeal would lie to the Sessions Court from an order of acquittal in a complaint under Section 138 of the Negotiable Instruments Act. Those two views are the following:

"6. One group pointed out that the amendment, namely, Amendment Act 5 of 2009, has amended Section 372 CrPC incorporating a right of appeal to the victims and also introducing definition of 'victim' as per Section 2(wa) of CrPC is intended to CRL.R.P.NOS.2334 & 2338 OF 2013 :: 13 ::

benefit a specific group of persons falling within the ambit of the definition of victim. It was contended that these persons had no remedy earlier against acquittal and they had no role to play in the proceedings. It was felt that the victims were the most affected persons in a crime, and in the absence of any provision in the CrPC for them to participate in the proceedings or to agitate the matter when they feel aggrieved by the final decision, it was thought necessary that they should be provided with some remedies, and it is with that object and purpose that the amendments have been introduced. Heydon's Rule of Interpretation was invoked in support of this contention. It was also pointed out that as far as the complainants in a private complaint are concerned, there already existed a remedy by way of appeal by Special Leave under Section 378(4) CrPC and the amendment to Section 372 CrPC and the introduction of the definition under Section 2(wa) CrPC is not intended to cover them as they were already conferred with statutory remedies.

7. The rival contention is that when the Statute provides a remedy, it is not for the Court, by an interpretative exercise, to limit the scope of the provision and to deny

the benefit of the provision to those who are entitled to the same. If the complainant answers the CRL.R.P.NOS.2334 & 2338 OF 2013 :: 14 ::

definition of victim as contained in Section 2(wa) CrPC, then there is no justification to deny such a person a right of appeal as provided under the proviso to Section 372 CrPC. It was also contended that the Legislature must be bestowed with the knowledge of the existence of Section 378(4) CrPC in the Statute book and in spite of the existence of such a provision, while incorporating proviso to Section 372 CrPC and incorporating the definition of 'victim' under Section 2(wa) CrPC, the Legislature did not exclude complainant. The mere fact that the complainant may have two remedies by itself is not a ground to deny them the benefit of the amended provision."

13. The learned single Judge in Shibu Joseph and others v. Tomy K.J. and others : 2013 (4) KHC 629, also referred to the different views taken by the Bombay High Court, Punjab and Haryana High Court, Madras High Court and Rajasthan High Court, in paragraph 21 of the judgment. The learned Judge also referred to Section 357A of the Code of Criminal Procedure and held that the victim compensation scheme under Section 357A does not draw a distinction between a victim in a case, cognizance of which was taken on a police report and cognizance of which was taken on a private CRL.R.P.NOS.2334 & 2338 OF 2013 :: 15 ::

complaint. The learned Judge in Shibu Joseph's case concluded thus:

"62. From the above discussion, the following conclusions emerge:

(a) Complainants in private complaints, who satisfy the definition of victim as contained in Section 2 (wa) of CrPC, are entitled to file appeal as provided under the proviso to Section 372 CrPC as a matter of right.

(b) Complainant in a complaint under Section 138 of NI Act is also a victim and is entitled to the same benefit as the victim in any other case instituted on a private complaint.

(c) In case of acquittal of accused on a private complaint, if the complainant is also the victim, he may have two remedies, namely, appeal under the proviso to Section 372 CrPC as a matter of right, and appeal to High Court after obtaining special leave. But going by the principle of hierarchy of Courts, the aggrieved person will have to approach the lower forum which is competent to entertain the appeal. If he avails of one of the two remedies, he is precluded from resorting to the other remedy.

(d) Right of appeal under the proviso to Section CRL.R.P.NOS.2334 & 2338 OF 2013 :: 16 ::

372 CrPC is available in all cases where the judgments are rendered after 31/12/2009.

(e) In case of acquittal in a private complaint by the Sessions Court, if the complainant is also the victim, he has a statutory right of appeal as per proviso to Section 372 CrPC and the stipulation in Section 378(4) CrPC to obtain special leave may not apply in such a case."

14. In *Sree Gokulam Chit and Finance Co. (P) Ltd., Kasaragod v. Damodaran N. and another* : 2013 (4) KHC 395, the learned Judge held:

"35. In the light of the aforesaid discussions, I find that the context under which the expression 'victim' employed under Section 372 of the CrPC is that of 'victim' who has suffered injury or loss in a case instituted on a police report and who stood remediless at the mercy of State Government or Central Government as the case may be or the District Magistrate alone, for preferring appeal against acquittal of the accused. The complainant in a case instituted on a private complaint under Section 190(a) read with Section 200 of the CrPC though, can be claimed to be a 'victim', does not come under the proviso to Section 372 CRL.R.P.NOS.2334 & 2338 OF 2013 :: 17 ::

of the CrPC, since the context under Section 378(4) of the CrPC requires to make a construction otherwise. Consequently, an appeal against acquittal of the accused, by the complainant, in a case instituted on a private complaint under Section 190(a) read with Section 200 of the CrPC will not lie under Section 372 of the CrPC before the Sessions Court but lie before the High Court with Special Leave under Section 378(4) of the CrPC only."

15. The controversy can be resolved by resolving the question what exactly is the meaning of the term 'victim' in Section 2(wa) of the Code of Criminal Procedure. The definition of the expression 'victim' is couched in wide terms. It could also be said that a complainant in a complaint under Section 138 of the Negotiable Instruments Act is a person who has suffered loss or injury and that such loss or injury was caused by reason of an act or omission on the part of the accused. Section 2 starts with the words "in this Code, unless the context otherwise requires". Generally speaking, definition of a term contained in a statute will apply in the matter of interpretation of the provisions in the statute and wherever that word is used it shall have the meaning assigned to it in the definition clause. But it is not an CRL.R.P.NOS.2334 & 2338 OF 2013 :: 18 ::

absolute rule that the same meaning as shown in the definition clause would always apply in all circumstances and in all situations wherever that word is used in the statute. That is why the expression "in this Code, unless the context otherwise requires" is used in the Section containing definition of the various terms. If the context otherwise requires, a meaning different from that in the definition can be employed for interpreting the provisions in the statute. So, the question to be enquired into while interpreting the scope of the proviso to Section 372 of the Code is

whether a different meaning should be assigned to the expression 'victim'. It is also to be decided whether the context otherwise requires a restricted meaning to be given to the term 'victim'.

16. The principles governing interpretation of statutes are relevant in this context. In the statement of objects and reasons of the Code of Criminal Procedure (Amendment) Act, 2008 it is stated:

"At present, the victims are the worst sufferers in a crime and they don't have much role in the court proceedings. They need to be given certain rights and compensation, so that there is no distortion of the CRL.R.P.NOS.2334 & 2338 OF 2013 :: 19 ::

criminal justice system. There is an urgent need to provide relief to women, particularly victims of sexual offences, and provide fair-trial to persons of unsound mind who are not able to defend themselves."

17. In the 154th Report of the Law Commission, recommendation was made for comprehensive amendments to the Code of Criminal Procedure including the insertion of the proviso to Section 372, the definition of 'victim', and insertion of a provision for 'victim compensation' etc.. After the Amendment Act 5 of 2009 was enacted, in the 221st Report of the Law Commission, it was noted in clause 2.9 as follows:

"2.9 All appeals against orders of acquittal passed by Magistrates were being filed in High Court prior to amendment of Section 378 by Act 25 of 2005. Now, with effect from 23/06/2006, appeals against orders of acquittal passed by Magistrates in respect of cognizable and non-bailable offences in cases filed on police report are being filed in the Sessions Court, vide clause (a) of sub-section (1) of the said section. But, appeal against order of acquittal passed in any case instituted upon complaint continues to be filed in the High Court, if Special Leave is granted by it on an application made to it by the complainant, vide sub- CRL.R.P.NOS.2334 & 2338 OF 2013 :: 20 ::

section (4) of the said section. Section 378 needs change with a view to enable filing of appeals in complaint cases also in the Sessions Court, of course, subject to the grant of Special Leave by it."

18. The 221st Report of the Law Commission shows that even after the amendment of the Code of Criminal Procedure by Act 5 of 2009, appeal against an order of acquittal passed in any case instituted upon complaint continued to be filed in the High Court, on grant of Special Leave. The Law Commission suggested that Section 378 of the Code of Criminal Procedure needs change so as to provide appeal against acquittal in complaint cases as well before the Sessions Court.

19. In *State of West Bengal v. Union of India* :AIR 1963 SC 1241, a Constitution Bench of the Supreme Court considered as to what extent the statement of objects and reasons accompanying a Bill can be used to determine the true meaning and effect of the provisions of an Act. It was held:

"...It is however well-settled that the Statement of objects and Reasons accompanying a Bill, when CRL.R.P.NOS.2334 & 2338 OF 2013 :: 21 ::

introduced in Parliament, cannot be used to determine the true meaning and effect of the substantive provisions of the Statute. They cannot be used except for the limited purpose of understanding the background and the antecedent state of affairs leading up to the legislation. But we cannot use this statement as an aid to the construction of the enactment or to show that the legislature did not intend to acquire the proprietary rights vested in the State or in any way to affect the State Governments' rights as owners of minerals. A statute, as passed by Parliament, is the expression of the collective intention of the legislature as a whole, and any statement made by an individual, albeit a Minister, of the intention and objects of the Act cannot be used to cut down the generality of the words used in the statute."

20. In *Bhaiji v. Sub-Divisional Officer, Thandla and others* :

(2003) 1 SCC 692, the Supreme Court held:

"11. Reference to the Statement of Objects and Reasons is permissible for understanding the background, the antecedent state of affairs, the surrounding circumstances in relation to the statute, and the evil which the statute sought to remedy. The weight of judicial authority leans in favour of the view that the Statement of Objects and Reasons cannot be utilized for CRL.R.P.NOS.2334 & 2338 OF 2013 :: 22 ::

the purpose of restricting and controlling the plain meaning of the language employed by the legislature in drafting a statute and excluding from its operation such transactions which it plainly covers. (See *Principles of Statutory Interpretation* by Justice G.P.Singh, 8th Edn., 2001, pp.206-09.)"

21. In *Mithilesh Kumari and another v. Prem Behari Khare* :

AIR 1989 SC 1247, the Supreme Court held that where a particular enactment or amendment is the result of recommendation of the Law Commission of India, it may be permissible to refer to the relevant report. What importance can be given to it will depend upon the facts and circumstances of each case. The Law Commission's Reports may be referred to as external aid to the construction of the provisions of a statute. However, the Court has to interpret the language used in the Act and when the language is clear and unambiguous, it must be given effect to.

22. In *Reserve Bank of India v. Peerless General Finance and Investment Co. Ltd. and others* : AIR 1987 SC 1023, the Supreme Court held:

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"33. Interpretation must depend on the text and the context. They are the bases of interpretation. One may well say if the text is the texture, context is what gives the colour. Neither can be ignored. Both are important. That interpretation is best which makes the textual interpretation match the contextual. A statute is best interpreted when we know why it was enacted. With this knowledge, the statute must be read, first as a whole and then section by section, clause by clause, phrase by phrase and word by word. If a statute is looked at, in the context of its enactment, with the glasses of the statute-maker, provided by such context, its scheme, the sections, clauses, phrases and words may take colour and appear different than when the statute is looked at without the glasses provided by the context. With those glasses we must look at the Act as a whole and discover what each section, each clause, each phrase and each word is meant and designed to say as to fit into the scheme of the entire Act. No part of a statute and no word of a statute can be construed in isolation. Statutes have to be construed so that every word has a place and everything is in its place."

23. In *R.S.Raghunath v. State of Karnataka and another* :

AIR 1992 SC 81, it was held that the Court should examine every CRL.R.P.NOS.2334 & 2338 OF 2013 :: 24 ::

word of a statute in its context. The decision in AIR 1987 SC 1023 was referred to in *R.S.Raghunath's* case.

24. In *M/s.Girdhari Lal and Sons v. Balbir Nath Mathur and others* : (1986) 2 SCC 237, it was held:

"16. Our own court has generally taken the view that ascertainment of legislative intent is a basic rule of statutory construction and that a rule of construction should be preferred which advances the purpose and object of a legislation and that though a construction, according to plain language, should ordinarily be adopted, such a construction should not be adopted where it leads to anomalies, injustices or absurdities, vide *K. P. Varghese v. ITO* (1981) 4 SCC 173, *State Bank of Travancore v. Mohd. M. Khan*, (1981) 4 SCC 82, *Som Prakash Rekhi v. Union of India*, (1981) 1 SCC 449; *Ravula Subba Rao v. C.I.T.*, 1956 SCR 577 : (AIR 1956 SC 604); *Govindlal v. Agricultural Produce Market Committee*, (1976) 1 SCR 451 : (AIR 1976 SC 263); *Babaji Kondaji v. Nasik Merchants Co-op. Bank Ltd.*, (1984) 2 SCC 50."

25. In *South Asia Industries Private Limited v. S.Saroop* CRL.R.P.NOS.2334 & 2338 OF 2013 :: 25 ::

Singh and others : AIR 1966 SC 346, it was held that the object of interpreting a statute is to ascertain the intention of the Legislature enacting it.

26. In *Union of India v. Elphinstone Spinning and Weaving Co. Ltd. and others* : AIR 2001 SC 724, a Constitution Bench of the Supreme Court held:

"The duty of judges is to expound and not to legislate is a fundamental rule. There is no doubt a marginal area in which the Courts mould or creatively interpret legislation and they are thus finishers, refiners and polishers of legislation which comes to them in a state requiring varying degrees of further processing (See: Corocraft Ltd. v. Pan American Airways Inc. (1968) 3 WLR 714, p. 732, State of Haryana v. Sampuran Singh, 1975 (2) SCC 810 : (AIR 1975 SC 1952). But by no stretch of imagination a Judge is entitled to add something more than what is there in the Statute by way of a supposed intention of the legislature. It is, therefore, a cardinal principle of construction of statute that the true or legal meaning of an enactment is derived by considering the meaning of the words used in the enactment in the light of any discernible purpose or object which comprehends the mischief and its remedy to which the enactment is directed."

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27. In M/s.British Airways Ple. v. Union of India and others : AIR 2002 SC 391, the Supreme Court held:

"7. While interpreting a statute the Court should try to sustain its validity and give such meaning to the provisions which advance the object sought to be achieved by the enactment. The Court cannot approach the enactment with a view to pick holes or to search for defects of drafting which make its working impossible. It is a cardinal principle of construction of a statute that effort should be made in construing the different provisions so that each provision will have its play and in the event of any conflict a harmonious construction should be given. The well-known principle of harmonious construction is that effect shall be given to all the provisions and for that any provision of the statute should be construed with reference to the other provisions so as to make it workable. A particular provision cannot be picked up and interpreted to defeat another provision made in that behalf under the statute. It is the duty of the Court to make such construction of a statute which shall suppress the mischief and advance the remedy. While interpreting a statute the Courts are required to keep in mind the consequences which are likely to flow upon the intended interpretation."

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28. In Mohammad Sher Khan v. Raja Seth Swami Dayal :

AIR 1922 Privy Council 17, the Privy Council held that one section in a statute cannot be used to defeat another section unless it is impossible to effect a reconciliation between them.

29. In D.Sanjeevayya v. Election Tribunal, Andhra Pradesh and others : AIR 1967 SC 1211, the Supreme Court held that it is a well settled rule of construction that the provisions of a statute

should be so read as to harmonise with one another and the provisions of one section cannot be used to defeat those of another unless it is impossible to effect reconciliation between them.

30. In *The Vanguard Fire and General Insurance Co. Ltd. Madras v. M/s. Fraser and Ross and another* : AIR 1960 SC 971, the Supreme Court held:

6. It is well settled that all statutory definitions or abbreviations must be read subject to the qualification variously expressed in the definition clauses which created them and it may be that even where the definition is exhaustive inasmuch as the word defined is said to mean a certain thing, it is possible for the word to
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have a somewhat different meaning in different sections of the Act depending upon the subject or the context. That is why all definitions in statutes generally begin with the qualifying words similar to the words used in the present case, namely, unless there is anything repugnant in the subject or context. Therefore in finding out the meaning of the word "insurer" in various sections of the Act, the meaning to be ordinarily given to it is that given in the definition clause. But this is not inflexible and there may be sections in the Act where the meaning may have to be departed from on account of the subject or context in which the word has been used and that will be giving effect to the opening sentence in the definition section, namely, unless there is anything repugnant in the subject or context. In view of this qualification, the court has not only to look at the words but also to look at the context, the collocation and the object of such words relating to such matter and interpret the meaning intended to be conveyed by the use of the words under the circumstances."

31. In *Subhash Chand v. State (Delhi Administration)* :

(2013) 2 SCC 17, the complaint was filed by the State through its Local Health Authority against one Subhash Chand and Daya Chand alleging violation of certain provisions of the Prevention of Food
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Adulteration Act, 1954. The complaint against Daya Chand abated due to his death. Subhash Chand was tried and he was acquitted by the learned Magistrate. The State filed criminal appeal before the Sessions Court under Section 378(1)(a) of the Code of Criminal Procedure. A preliminary objection was raised in regard to the maintainability of the said appeal before the Sessions Court. It was contended that an appeal arising from an order of acquittal in a complaint case would lie to the High Court. The said objection was rejected by the Sessions Court. That order was challenged before the High Court. The High Court held that the Sessions Court had no jurisdiction to entertain the appeal and directed that the appeal be transferred to the High Court. The order of the High Court was challenged before the Supreme Court. The Supreme Court remanded the case to the High Court for fresh decision, taking into consideration the provisions of Section 378(1) and 378(4) of the Code of

Criminal Procedure and the relevant provisions of the Prevention of Food Adulteration Act. After remand, the High Court of Delhi held that the appeal filed by the State against an order of acquittal would lie to the Sessions Court under Section 378(1) of the Code of Criminal Procedure. The order of the High Court was again challenged before CRL.R.P.NOS.2334 & 2338 OF 2013 :: 30 ::

the Supreme Court by the accused. The question which was considered by the Supreme Court was whether in a complaint case an appeal from an order of acquittal would lie to the Sessions Court under Section 378(1)(a) of the Code of Criminal Procedure or to the High Court under Section 378(4) of the Code. The Supreme Court considered the relevant clauses in the 154th and 221st Reports of the Law Commission of India and the amendment brought out by Act 25 of 2005 and it was held thus:

"23. .In view of the above, we conclude that a complainant can file an application for special leave to appeal against an order of acquittal of any kind only to the High Court. He cannot file such appeal in the Sessions Court. In the instant case the complaint alleging offences punishable under Section 16(1)(1A) read with Section 7 of the PFA Act and the Rules is filed by complainant Shri Jaiswal, Local Health Authority through Delhi Administration. The appellant was acquitted by the Metropolitan Magistrate, Patiala House Courts, New Delhi. The complainant can challenge the order of acquittal by filing an application for special leave to appeal in the Delhi High Court and not in the Sessions Court. Therefore, the impugned order holding that this case is not governed by Section 378(4) of the Code is quashed and set aside...."

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32. Of course, in Subhash Chand v. State (Delhi Administration) : (2013) 2 SCC 17, the scope of the Code of Criminal Procedure (Amendment) Act, 2008 (Act 5 of 2009) did not come up for consideration.

33. Before the amendment of the Code of Criminal Procedure, the remedy of the complainant in a case instituted on complaint against the order of acquittal of the accused was to file an appeal before the High Court under Section 378(4) provided special leave to appeal was granted by the High Court. Section 378(4) continues in the Code even after the amendment brought out by Act 5 of 2009, by which the definition of 'victim' and a proviso to Section 372 of the Code were inserted. Drastic changes were made in Section 378 by Act 25 of 2005 and even at that time, Section 378(4) was not amended. It cannot be assumed that the Parliament was not aware of the remedy to file an appeal only to the High Court provided under Section 378(4) to challenge an order of acquittal passed in a case instituted upon complaint. Before the amendment, in a case instituted on police report, the victim could challenge the order of CRL.R.P.NOS.2334 & 2338 OF 2013 :: 32 ::

acquittal only by filing a revision under Section 397 of the Code of Criminal Procedure. After the introduction of the definition of 'victim' in Section 2(wa), the victim in a case instituted on police report can prefer an appeal to the Sessions Court against any order passed by the Court acquitting the accused or convicting the accused for a lesser offence or imposing inadequate compensation. No special leave to appeal is required in the case of an appeal filed under the proviso to Section 372. If it is to be construed that a complainant in a complaint case can file an appeal to the Sessions Court under the proviso to Section 372 or to the High Court under Section 378(4) of the Code of Criminal Procedure, that would mean that a complainant in a complaint case, who is the victim in the case, would have two remedies. If he chooses the remedy under the proviso to Section 372, he can file an appeal, as of right, to the Sessions Court and no special leave to appeal is required. If the aforesaid interpretation is accepted and if the complainant files appeal against acquittal before the High Court under Section 378(4), special leave to appeal is required. It cannot be said that the law makers provided two remedies to the complainant in a complaint case (who is also a victim) to file an appeal before the Sessions Court or before the High CRL.R.P.NOS.2334 & 2338 OF 2013 :: 33 ::

Court. There is no provision either in Section 372 or in Section 378 that when an appeal against an order of acquittal is filed by the complainant before the Sessions Court, he is precluded from filing an appeal before the High Court under Section 378(4) of the Code of Criminal Procedure. Section 378(4) does not say that an appeal lies to the High Court only against an original order of acquittal passed by the trial court. If it is to be interpreted that the proviso to Section 372 covers also an appeal against acquittal in a complaint case, what prevents the complainant from filing a further appeal to the High Court under Section 378(4) if the Sessions Court also acquits the accused confirming the order of acquittal passed by the trial court? By the Amendment Act 5 of 2009, we are sure that the law makers did not provide such a remedy to the complainant in a complaint case, who is also a victim. It is not a case where the law makers provided concurrent remedies to the complainant in a complaint case to file appeal either before the Sessions Court or before the High Court. If that is so, a provision similar to sub-section (3) of Section 397 of the Code of Criminal Procedure would have been found a place either in Section 372 or in Section 378. Sub-section (3) of Section 397 bars further revision by the same person who has CRL.R.P.NOS.2334 & 2338 OF 2013 :: 34 ::

already filed a revision either before the High Court or before the Sessions Court. Absence of such a provision like Section 397(3) either in Section 372 or in Section 378 would also give an indication that the law makers did not provide concurrent jurisdiction on the Sessions Court and the High Court to entertain an appeal against acquittal, by the victim in a complaint case.

34. The expression "unless the context otherwise requires"

occurring in Section 2 would be a helpful tool for the interpretation of the proviso to Section 372 to resolve the question whether the context requires an interpretation to the term 'victim' taking out of its purview, a complainant in a complaint case. On a consideration of the aforesaid provisions of law, we are of the view that the expression 'victim' requires an interpretation in the context of the provisions in Sections 372 and 378 to exclude the complainant in a complaint case, who is also the victim, from the purview of the definition of victim under Section 2(wa). The principles of harmonious construction and the principle that one section in a statute cannot be used to defeat the provision in another section would enable the Court to come to such a conclusion alone. Such an interpretation CRL.R.P.NOS.2334 & 2338 OF 2013 :: 35 ::

would make the textual interpretation to match with the contextual. Comprehending the various principles referred to above in their context and without construing a particular word in isolation and taking the statute as a whole, we differ from the view taken in Shibu Joseph and others v. Tomy K.J. and others : 2013 (4) KHC 629 and accept the view taken in Sree Gokulam Chit and Finance Co. (P) Ltd., Kasaragod v. Damodaran N. and another : 2013 (4) KHC

395.

35. For the aforesaid reasons, we hold that the complainant in a case under Section 138 of the Negotiable Instruments Act cannot challenge the order of acquittal before the Sessions Court under the proviso to Section 372 of the Code of Criminal Procedure and his remedy is only to file an appeal to the High Court with special leave under Section 378(4) of the Code of Criminal Procedure.

In the present case, since the Sessions Court entertained the appeals and confirmed the acquittal, it is necessary to set aside the judgments rendered by the Sessions Court. Accordingly, the judgments in Crl.A.No.727 of 2012 and 728 of 2012 are set aside. CRL.R.P.NOS.2334 & 2338 OF 2013 :: 36 ::

The remedy of the petitioners is to file appeals under Section 378(4) of the Code of Criminal Procedure before the High Court with special leave to appeal. The Criminal Revision Petitions are, accordingly, dismissed with opportunity to the petitioners to file appeal to the High Court under Section 378(4) of the Code of Criminal Procedure. In the facts and circumstances, it is necessary to observe that the time taken for prosecuting the appeals before the Sessions Court and the time taken in prosecuting the above Criminal Revision Petitions will be excluded while computing the period of limitation for filing the appeals under Section 378(4) of the Code of Criminal Procedure.

(K.T.SANKARAN) Judge (M.L.JOSEPH FRANCIS) Judge ahz/